

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
WESLEY COOPER,

Plaintiff,

-against-

POLICE OFFICER JOSEPH ESPOSITO, SHIELD
NUMBER UNKNOWN, POLICE OFFICER MELISSA
KARPATKAKIS, SHIELD NUMBER UNKNOWN,
AND POLICE OFFICER EDWARD MILMORE,
SHIELD NUMBER UNKNOWN,Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
205 West 115th Street
New York, New York 10026

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
September 4, 2015
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
WESLEY COOPER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

POLICE OFFICER JOSEPH ESPOSITO.
SHIELD NUMBER UNKNOWN,
POLICE OFFICER MELISSA KARPATKAKIS,
SHIELD NUMBER UNKNOWN,
POLICE OFFICER EDWARD MILMORE,
SHIELD NUMBER UNKNOWN
Midtown North Precinct
306 West 54th Street
New York, New York 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
WESLEY COOPER,

Plaintiff,

Index No.:

-against-

POLICE OFFICER JOSEPH ESPOSITO, SHIELD
NUMBER UNKNOWN, POLICE OFFICER MELISSA
KARPATKAKIS, SHIELD NUMBER UNKNOWN,
AND POLICE OFFICER EDWARD MILMORE,
SHIELD NUMBER UNKNOWN,

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff WESLEY COOPER by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, respectfully alleges as follows:

1. Plaintiff WESLEY COOPER brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. The City of New York maintains the New York City Police Department, including all the police officers thereof, a duly authorized police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction, control and supervision of the aforementioned municipal corporation.

4. Plaintiff WESLEY COOPER is a Black male, a citizen of the United States, and at all relevant times a resident of the State of New York.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, was employed by the New York City Police Department as a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties.

6. That at all times hereinafter mentioned Defendant POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, acted within the scope of his employment as a police officer.

7. That at all times hereinafter mentioned Defendant POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, was assigned to the Midtown North Precinct (306 West 54th Street, New York, New York 10019).

8. That at all times hereinafter mentioned Defendant POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, was acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the City and State of New York.

9. That at all times hereinafter mentioned Defendant POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, was employed by the New York City Police Department as a duly sworn police officer of said department and was acting under the supervision of said department and according to her official duties.

10. That at all times hereinafter mentioned Defendant POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, acted within the scope of her employment as a police officer.

11. That at all times hereinafter mentioned Defendant POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, was assigned to the Midtown North Precinct (306 West 54th Street, New York, New York 10019).

12. That at all times hereinafter mentioned Defendant POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, was acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or

practices of the City and State of New York.

13. That at all times hereinafter mentioned Defendant POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, was employed by the New York City Police Department as a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties.

14. That at all times hereinafter mentioned Defendant POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, acted within the scope of his employment as a police officer.

15. That at all times hereinafter mentioned Defendant POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, was assigned to the Midtown North Precinct (306 West 54th Street, New York, New York 10019).

16. That at all times hereinafter mentioned Defendant POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, was acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the City and State of New York.

17. That on October 4, 2012, at approximately 4:00 a.m., Plaintiff WESLEY COOPER was lawfully present on 8th Avenue between 43rd and 44th Street in the County, City, and State of New York.

18. That on the aforementioned date, time, and place Plaintiff WESLEY COOPER was suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN.

19. That, at the aforementioned date, time and place, Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD

MILMORE, SHIELD NUMBER UNKNOWN, handcuffed Plaintiff WESLEY COOPER and placed him under arrest for fraudulent accosting and unlawful possession of marijuana, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

20. That, on October 4, 2012, at approximately 4:00 a.m., Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATHEAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, without legal process, forcibly, wrongfully and unlawfully arrested Plaintiff WESLEY COOPER.

21. That Plaintiff WESLEY COOPER was then transported to the Midtown North Precinct (306 West 54th Street, New York, New York 10019) of the New York City Police Department where he was subjected to an unlawful "strip-search", and thereafter to New York Central Booking where his arrest was processed.

22. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATHEAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, initiated criminal proceedings against Plaintiff WESLEY COOPER despite Defendants' knowledge that they lacked probable cause to do so.

23. That Plaintiff WESLEY COOPER was arraigned under Docket Number 2012NY078019 and following arraignment was incarcerated in the Manhattan Detention Complex (125 White Street, New York, New York 10013).

24. That Plaintiff WESLEY COOPER was held, detained and imprisoned from October 4, 2012, to October 13, 2012, before being released on his own recognizance.

25. That on June 18, 2013, by Order of the Honorable A. Scherzer, all charges against Plaintiff WESLEY COOPER were dismissed (Docket Number 2012NY078019).

26. As a result of the foregoing, Plaintiff WESLEY COOPER sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

27. Plaintiff WESLEY COOPER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

28. That at the aforementioned time and place, Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, placed Plaintiff WESLEY COOPER under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

29. That Plaintiff WESLEY COOPER had not committed any offense and Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

30. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, were aware that probable cause did not exist for the arrest and detention of Plaintiff WESLEY COOPER and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff WESLEY COOPER and such actions were committed in bad faith.

31. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff WESLEY COOPER and such actions were committed in bad faith.

32. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff WESLEY COOPER was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

33. As a further result of the above-described acts, Plaintiff WESLEY COOPER was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

34. Plaintiff WESLEY COOPER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. That Plaintiff WESLEY COOPER was falsely imprisoned from October 4, 2012, to October 13, 2012, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

36. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER

UNKNOWN, intended to confine Plaintiff WESLEY COOPER and Plaintiff WESLEY COOPER was conscious of the confinement, and Plaintiff WESLEY COOPER did not consent to the confinement.

37. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff WESLEY COOPER and damaging Plaintiff WESLEY COOPER in his reputation and depriving him of his liberty.

38. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, all committed under color of their authority as police officers for the City of New York, and while acting in that capacity, Plaintiff WESLEY COOPER suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

39. Plaintiff WESLEY COOPER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

40. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, misrepresented and falsified evidence before the District Attorney.

41. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

42. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER

UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, withheld exculpatory evidence from the District Attorney.

43. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff WESLEY COOPER.

44. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, lacked probable cause to initiate criminal proceedings against Plaintiff WESLEY COOPER.

45. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, acted with malice in initiating criminal proceedings against Plaintiff WESLEY COOPER.

46. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, were directly and actively involved in the continuation of criminal proceedings against Plaintiff WESLEY COOPER.

47. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, lacked probable cause to continue criminal proceedings against Plaintiff WESLEY COOPER.

48. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, acted with malice in continuing criminal proceedings Plaintiff WESLEY COOPER.

49. That Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

50. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, the criminal proceedings were terminated in Plaintiff WESLEY COOPER's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

51. Plaintiff WESLEY COOPER repeats, reiterates and realleges each and every allegation contained in this complaint.

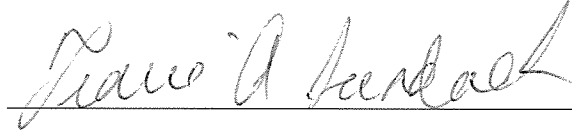
52. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff WESLEY COOPER's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

53. As a result of the aforementioned conduct of the individual Defendants, Plaintiff WESLEY COOPER's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

WHEREFORE Plaintiff WESLEY COOPER demands judgment against Defendants POLICE OFFICER JOSEPH ESPOSITO, SHIELD NUMBER UNKNOWN, POLICE OFFICER MELISSA KARPATKAKIS, SHIELD NUMBER UNKNOWN, and POLICE OFFICER EDWARD MILMORE, SHIELD NUMBER UNKNOWN, jointly and severally, in the

amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
September 4, 2015

A handwritten signature in cursive script, reading "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
WESLEY COOPER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
September 4, 2015



TRACIE A. SUNDACK